

Choosing a Conservation Instrument in Papua New Guinea

Wildlife Management Area · Conservation Area · Protected Area Chapter 2 reference sheet

PNG's three main conservation instruments sit under three different Acts. They are not interchangeable — the right choice depends on what you are protecting, what threatens it, and who owns the land.

	WILDLIFE MANAGEMENT AREA	CONSERVATION AREA	PROTECTED AREA
Governing law	Fauna (Protection and Control) Act 1966	Conservation Areas Act 1978	Protected Areas Act 2023
What it controls	Taking and killing of fauna only	Land use and development	Full management regime
Who initiates it	Customary landowners	Any person or authority, by written request to the Minister	Landowners with CEPA, under FPIC
Who declares it	Minister, by notice in the National Gazette	Head of State, on National Executive Council advice	CEPA process under the Act
Management plan	Not required — committee rules instead	Required — approved by the Minister	Required — drafted by landowning clans
Enforcement mechanism	Committee rules, licensing and royalties	Fines up to K40,000 for unauthorised development	Binding deeds negotiated with landowners
Most appropriate when	Regulating hunting while the community keeps using the resource	The threat is land-use change on a significant site	You need durable, funded, nationally recognised status

Factors that apply to all three

- 1. Customary tenure and consent.** Establish who owns each parcel, clan by clan, and whether the group proposing the area can speak for all owners. Most PNG conservation areas fail here, not at gazettal.
- 2. Overlapping rights.** Check for existing forest concessions, mining tenements, SABLs and alienated land before committing effort.
- 3. Ecological viability.** Endemism and threatened species matter — but so do size and connectivity. Undersized areas cannot hold viable populations.
- 4. Match the instrument to the threat.** Hunting pressure points to a WMA; conversion to agriculture, logging or mining means you need land-use control.
- 5. Boundaries.** They must be ecologically sensible and socially defensible — in practice they must follow clan boundaries. Map them properly.
- 6. Recurrent cost and benefit.** What replaces the income landowners forgo, and who funds management in year five?

Choosing between them

- Hunting or harvest pressure, community wants continued use → **Wildlife Management Area**
- Threat is conversion or development of a significant site → **Conservation Area**
- You need durable, recognised status with a financing pathway → **Protected Area**

Note: this is a summary of the statutes, not legal advice. The Protected Areas Act 2023 was passed in February 2024 and its implementing regulations were still being developed; confirm current procedure and transitional arrangements with CEPA before relying on it.